

25STCV13971 25STCV13971

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-09-04

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Case Number: 25STCV13971 Hearing Date: September 4, 2026 Dept: 529

BURNELL M. LAND vs LA COUNTY METROPOLITAN
TRANSPORTATION AUTHORITY

PLAINTIFF'S

MOTION FOR CONTINUANCE OF HEARING IN ORDER TO SECURE NECESSARY EVIDENCE

Date

of Hearing: September 4, 2026 Trial Date: None
set

Department: 529 Case No.: 25STCV13971

Moving Party: Plaintiff Burnell M. Land

Responding

Party: No opposition

BACKGROUND

On May 13, 2025, Plaintiff Burnell M.

Land filed a complaint against Defendant LA County Metropolitan Transportation Authority for motor vehicle negligence and general negligence. Plaintiff alleges Defendant so negligently operated the bus that Plaintiff was injured and thrown to the floor.

[Tentative] Ruling

Plaintiff's Motion for Continuance of

Hearing in Order to Secure Necessary Evidence is GRANTED.

DISCUSSION

Plaintiff seeks an order, pursuant to Code of Civil Procedure section 437c(h), continuing the hearing of Defendant LACMTA's motion for summary judgment 45 days or, until the first available date after October 15, to ensure Plaintiff can complete the deposition of the LACMTA bus driver that Plaintiff alleges caused the accident.

An opposing party seeking a continuance of a motion for summary judgment may make a showing required under Code of Civil Procedure section 437c(h), or seek a continuance under the ordinary discretionary standard for requests for a continuance. (See Code Civ. Proc., § 437c, subd. (h); *Mahoney v. Southland Mental Health Associates Medical Group* (1990) 223 Cal.App.3d 167, 170.) Code of Civil Procedure section 437c, subdivision (h) states: "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due." "The drafters' inclusion of the italicized words 'may' and 'shall' leaves little room for doubt that such continuances are to be liberally granted. Indeed, as one court noted, 'an opposing party can compel a continuance of a summary judgment motion' by making a declaration meeting the requirements of section 437c, subdivision (h)." (*Hamilton v. Orange County Sheriff's Dept.* (2017) 8 Cal.App.5th 759, 764-765 (*Hamilton*), quoting *Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 395-96.)

Plaintiff seeks discovery into the bus driver as the parties dispute who caused the accident. Plaintiff contends the bus driver did sit for a deposition on June 16; however, when it got to questions of causation, Defense counsel unlawfully instructed his client not to answer four of the questions based on "speculation", "vagueness and ambiguity" or "expert testimony". Plaintiff contends these objections are improper. As a result, Plaintiff seeks an order that the bus driver be ordered to answer some or all

of the wrongfully obstructed questioning.

The motion is unopposed. The court will exercise its discretion and continue the hearing on the motion for summary judgment. Plaintiff's counsel's declaration is sufficient to support a basis for the continuance pursuant to Code of Civil Procedure section 437c(h).

Based on the foregoing, Plaintiff's

Motion for Continuance of Hearing in Order to Secure Necessary Evidence is GRANTED.